

MARTINEZ VS. PARSON

CASE NUMBER: 25CV-0208252

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on April 15, 2026 to Plaintiff Timoteo Martinez and counsel Legal Needs, APC for failure to timely serve Defendant as required by California Rules of Court, Rule 3.110(b). “The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint.” CRC 3.110(b). The Complaint in this matter was filed on July 22, 2025 and no Proof of Service of Summons has been filed. Plaintiff filed a late response to the OSC explaining that Plaintiff is engaged in settlement discussions and is also working diligently to effectuate service. Plaintiff requests a 60-day continuance. The OSC is **DISCHARGED**. No sanctions will be imposed. However, the Court expects proof of service to be on file no later than the next review date. This matter is continued to **Monday, August 3, 2026 at 9:00 a.m. in Department 63** for review regarding status of service. **No appearances are necessary on today’s calendar.**

IN RE: MEIER

CASE NUMBER: 26CV-0210082

Tentative Ruling on Petition for Change of Name: Petitioner Denae Ann Meier seeks to change her name to Dean Ann Cortazzo. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

PEOPLE OF THE STATE OF CALIFORNIA VS. MCCON

CASE NUMBER: 25CVG-02609

Tentative Ruling on Motion to Set Aside Summary Judgment Discharge Forfeiture and Exonerate Bail: Defendant United States Fire Insurance moves to set aside summary judgment, discharge forfeiture, and exonerate bail. No opposition has been filed. A nearly identical Motion was filed in this matter on January 27, 2026. It was on calendar for hearing on February 23, 2026 and again on April 27, 2026. Both times, the Court informed Defendant that personal service on the County was necessary in order for the motion to proceed. The Motion was denied without prejudice. Defendant filed this Motion on May 6, 2026. There is no proof of service indicating that the County has been personally served. The motion is **DENIED** without prejudice. The proposed order will be modified.

PONCIANO, ET AL. VS. MARX, ET AL.

CASE NUMBER: CVCV20-0194371

Tentative Ruling on Motion for a New Trial: Defendants move for a new jury trial. Plaintiffs oppose the motion.

A jury trial as to damages ended in a verdict for Plaintiffs on January 15, 2026. Judgment was entered on March 30, 2026. Defendants filed the present Second Motion for a New Trial on May 1, 2026. Notice of Entry of Judgment was filed on April 17, 2026. As a preliminary matter, the motion was timely made per CCP § 659(a)(2). The burden of proof is on the moving party who must establish their position by a preponderance of the evidence. *Price v. Hibbs* (1964) 225 Cal. App. 2d 209, 215.

Merits. The grounds upon which a verdict may be vacated are enumerated in CCP § 657 which reads, in part:

The verdict may be vacated and any other decision may be modified or vacated, in whole or in part, and a new or further trial granted on all or part of the issues, on the application of the party aggrieved, for any of the following causes, materially affecting the substantial rights of such party:

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